

**BEFORE THE FEDERAL MARITIME COMMISSION
WASHINGTON, D.C.**

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INTERNATIONAL LONGSHOREMAN’S	:	
ASSOCIATION,	:	
	:	
Complainant,	:	
	:	
v.	:	FMC Docket No.: 22-12
	:	
GATEWAY TERMINALS, LLC;	:	
CHARLESTON STEVEDORING COMPANY,	:	
LLC; PORTS AMERICA FLORIDA, INC.;	:	
CERES MARINE TERMINALS, INC.; AND	:	
SSA ATLANTIC, LLC,	:	
	:	
Respondents.	:	
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JOINT STATUS REPORT

Pursuant to Judge Crovella’s Order dated January 13, 2023 (the “Order”), and with the consent of Complainant’s counsel, we submit the following Joint Status Report. The Parties met and conferred on January 13, 2023, for the purpose of discussing a proposed motion by Respondents to bifurcate the proceedings into a jurisdictional phase followed by a liability and damages phase, assuming the FMC retains jurisdiction after the first phase is completed. Complainants’ counsel is considering the proposed motion, but at this stage, it appears that the Parties “agree to disagree” about the proposed bifurcation, though discussions are continuing.

Because we have not been able to reach agreement on the bifurcation issue, we are submitting respective proposed discovery schedules as follows: one assuming Your Honor grants bifurcation; and another assuming Your Honor does not:

Bifurcation Motion Submitted by – January 27, 2023.

Response to motion filed by – February 10, 2023.

Assuming decision issued by February 24th, 2023:

If Bifurcation Granted:

- Jurisdictional Discovery – February 24 to May 31, 2023
- Jurisdictional discovery motion practice - June 1 to July 31, 2023.
- If Respondents' MSJ is denied, liability and damages discovery – July 1 to November 30, 2023.

If Bifurcation Denied:

- Combined jurisdictional, liability and damages discovery – February 24 through September 30, 2023.

Notwithstanding the February 24th start date specified above, Complainants have served the Respondents with Requests for Production of Documents on all issues, and Respondents have agreed to move forward with producing some initial written discovery on jurisdictional matters only— specifically, the record in the Commission's 2019 agreement review process – while the bifurcation motion is still pending before the Presiding Officer. That production will commence once the protective order is finalized. The Parties have exchanged and have agreed to a draft proposed protective order, which is expected to be finalized shortly.

Any review by the Commission of any jurisdictional determination may impact the discovery timeline set out above.

In addition, the Parties have made a follow-up inquiry to CADRS regarding scheduling of an initial mediation consultation but have not yet received a response.

Respectfully submitted,



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FLORIDA, INC.; CERES
MARINE TERMINALS, INC.;
and SSA ATLANTIC, LLC**

CERTIFICATE OF SERVICE

I hereby certify that the foregoing pleading was provided to Complainant's counsel of record by email on this 20th day of January 2023.

Matthew J. Thomas

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